BOBCAT TRAIL HOMEOWNER'S ASSOCIATION, INC.
SPECIAL BOARD OF DIRECTORS MEETING

Town Hall Minutes of
WEDNESDAY, SEPTEMBER 15, 2021

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1. *Call to Order*: President Doug Knowles called the meeting to order at 6:03 pm in the Bobcat Community Center and via Zoom Video Conference Call.

2. *Statement of Quorum*: A quorum was declared with six (6) Directors including President Douglas Knowles, Secretary Anne Beane, Director Sandy Burns, Director Robert Etherton, Director Steve Kohl, and Director Lynne Nohl all in attendance. Treasurer Marge Alden attempted to log in via Zoom call.

3. *Proof of Notice*: Secretary Beane confirmed that proper notice was provided no less than 4 days in advance, in accordance with Florida Statute and the Association's Governing Documents.

4. *HOA presentation of Golf Course information*:

President Knowles thanked residents for attending this special meeting in person and via Zoom. This special meeting of the Bobcat Trail Homeowners Association Board of Directors is being held in response to widespread community concern over the future of the golf course, its potential impact on the community and housing values, and what the community, through its HOAs and CDD, might or might not be able to do to protect community interests.

This meeting is not about the current operations (or lack thereof) of the golf club.

There will be no votes taken this evening (except to adjourn).

The format of the meeting will be a brief presentation on what we do know, followed by an opportunity for comments or questions from members of the community. The Board will not be answering questions per se, but if a brief response might help move things along, we may.

For the homeowner comments, we are asking that individuals submit their names and Bobcat addresses on a 3x5 card. The order of speakers will be determined by drawing names at random. If you have not submitted your name, please do so now at the back of the room.

What We Know

• It's obvious to all of us that the golf course has ceased operation, at least for now
• There is no indication that the golf course has been sold or foreclosed on
• Per the Master Declaration, the golf course owner is free to operate (or not operate) the golf course without HOA interference
• If the golf course resumes operation in the near future, regardless of ownership, the HOA has no role to play.
• There has been some confusion about ownership of the cart paths. Most of the paths are on course property and are owned by the course. Where the paths cross other properties (mostly CDD land), the course has an easement for the path and three feet on either side
• In response to questions that have been asked, the golf course is zoned by the City as "Planned Community Development", being part of the Community Development District. It's not clear what constraints this would place on development of the property.
• We've heard much speculation about whether new residential development of the course property is possible or feasible, and at what density. I suggest that there are too many unknown variables to be certain
• Any plans to develop the golf course into something else would be subject to review and permitting by the City Planning Department
• Because of the need for permitting, and based on experience with properties like Sabal Trace and Gulf Gate in Sarasota, re-development of the course property is probably not imminent.

What We Are Concerned About

• The simple uncertainty of future of the course is probably detrimental to property values
• With that in mind, I would suggest that fanning the flames on social media is not in our mutual interest
• The uncertainty could drag out for a long time
• Based on previous experience, such as Sabal Trace, conditions on the course property could deteriorate and become a nuisance, or worse, to surrounding properties
• In the extreme, the HOA could consider remediating conditions at HOA cost and assessing the property to possibly recover those costs; our legal standing to do this is not clear

We'll move on now to homeowner comments.

Some ground rules:

• In order to give as many people as possible an opportunity to speak, speakers are limited to three minutes.
• If your name is called and you wish to yield your time to someone who has not yet spoken, that is acceptable.
• Please address comments or questions to the meeting chair. I will call on others to respond if it's appropriate to move things forward.
• Please do not call out responses or answers to the current speaker.
• Remember that this is an HOA Board meeting and comments on the current or recent operations of the golf course are not HOA business and are off-topic.
• Please keep comments civil, and refrain from personal recriminations.
• Please listen to the neighbors who precede you, and avoid repetition.

5. *Homeowner Comments*: The following members of the community spoke in regard to the future of the Bobcat Trail Community.

Frank LaMond: Stated that he purchased a home in Bobcat because the CDD did not own the golf course. He is concerned about the expense of owning/operating a course with a long history of water issues. He worries about $ and about the lack of skills of residents to run a golf course.

Marge Lawson: Asked if investors who loaned $ to Smith foresaw this happening. A forensic audit is needed. Residents need to work together so we won't be ransomed.

Ed Sobleski: Stated we need to keep an open mind. 75% of residents here do not golf and their opinions should be considered in decisions. A vote is necessary for the community to move forward.

Tom Logi: Stated concern about expense of operating a golf course. Related several of his ideas: retain a 9-hole course, create a solar bank for residents, develop a grocery store, hospital north of Villas, parks/nature trails. Anything to be done should be for the benefit of the community. Think early - risk is great. How is our property an asset to the city?

Betty Ann Copley: Stated that our biggest loss is the ability to socialize through organized activities. CDD and HOA should step up to organize activities for residents in our Community Center.

Joelle Stanjones: Discussed plans of the Special Events Team, which is newly reestablished. BINGO is scheduled for October 4 - sign up ahead and bring $5 to be collected at the door for insurance. October 31 will be the Halloween food drive. We need volunteers for events!

Debbie Bradley: Asked what can be done about grass growing?

President Knowles said the HOA has ability to remediate unsightly problems with the hope of regaining money spent.

Written questions from Phil Aiuto:

Is the golf course current in fees owed to CDD and HOA?

President Knowles replied that the course is 2 years behind in CDD fees and 3 years behind in HOA fees.

What is the zoning requirement?

President Knowles replied that we will go to city planning department. Bobcat Trail is only required to meet the city planning code.

Doug McNamee: Stated that residents have 3 options in regard to the golf course. 1) current owner sells to developer, 2) current owner sells to a new owner, 3) owner files for Chapter 7 bankruptcy and we hope to pick up the course at auction. Other courses have been sold at auction for $300,000 - $600,000. If we approach the judge, perhaps we could express desire to own as a community since our property values align with the course. After bringing back to the community, lease course to a golf management company.

Director Etherton: Reinforced social plans in the works for future gatherings.

Marty Krall: Stated he is Past President of Fairway Commons HOA and we have unique water problems in Bobcat. We must be able to control the pumps.

President Knowles explained that CDD owns the lakes; golf course owns the pump house; Fairway Commons owns irrigation dependent upon water through pumps and lakes.

Ginger Warner: Thanked the board and all volunteers who are/have worked on this difficult issue on behalf of Bobcat residents.

6. Next Meeting Date: The next regular meeting of the Board is scheduled for September 29, 2021 @ 3:30 p.m. in the Community Center.

7. Adjournment: With there being no further business, a ***motion*** was made by Director Beane and seconded by Director Kohl to adjourn the meeting at 7:02 p.m. ***All were in favor and the motion carried unanimously.***

Respectfully submitted by Anne Beane, Secretary

Post Script: Zoom Connectivity

I'm addressing this to the several people who had pointed and/or constructive comments about the dismal Zoom experience for the Town Hall experience last night. I'd like to explain how we got there:

- Our management company offered the use of their Zoom account.
- Because our property manager had a scheduling conflict, he set it up as a hostless meeting. Because I was not the host, I could not mute all participants or otherwise control the meeting as a host normally could.
- We were all totally surprised to have over 100 (attempted) Zoom participants in addition to the roughly 100+ people in the room.
- I don't know if the 100-person cap was due to the hostless nature of the meeting or the tier of the AMI account.

In any case, please be assured we'll do better next time.

I will be sending out a meeting summary with my speaking notes later today or tomorrow.

Thank you for your patience.

Some lessons from this experience:

- No more host-less meetings, where there is no ability to mute participants
- If necessary, we should re-instate the paid Zoom account I opened last year; I had closed it because we never came close to the 100-participant limit on free accounts
- We'll need a person other than the chair to manage the Zoom session. Raf Susara usually does this for our regular meetings; he was unavailable for the Town Hall.

Doug